RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

What Blocks Teshuvah? The 24 Impediments & the Sins We Don't Notice

Hilchot Teshuvah Perek 4

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

Chapter: 4 (complete, Halachot 1–6)

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 5 November 2024 (week of Parashat Lech Lecha)

These notes are based on the Sofer.ai transcript of the recording.

Introduction: Teshuvah After Yom Kippur

The Rabbi opened with a belated *Chodesh Tov* and a reminder that teshuvah is not a Yom Kippur-only project: **"teshuvah is something which is the whole year round."** The series began in Elul; with Yom Kippur almost a month behind us, the aim now is to finish Hilchot Teshuvah by the end of December. Chapter 4 is "relatively straightforward" compared with what came before.

Recap of Chapters 1–3

Chapter	What we learned
1	The definition of teshuvah and its relationship with *viduy* (confession). Teshuvah is the prerequisite to viduy.
2	*Teshuvah gemurah*, complete repentance; the times especially suited to teshuvah; how viduy is done properly; asking forgiveness from other people (*bein adam lechavero*).
3	*Tzaddik, beinoni, rasha* (righteous, average, wicked) and a person's standing on Yom Kippur; and, in its second half, the categories of people who, in the Rambam's view, have no share in the World to Come.

Part 1: Where Does the Number 24 Come From?

The chapter opens:

עשרים וארבעה דברים מעכבין את התשובה

Twenty-four things hold back teshuvah.

The Rabbi pointed out that although "everything the Rambam says is sourced in the Talmud," **the number 24 appears nowhere in the Talmud.** The Rambam is quoting the **Rif**, Rabbi Yitzchak Alfasi of Algeria and North Africa, who lived about 150 years before him and listed the 24 at the end of his work on Masechet Yoma.

The Rambam was actually asked where the Rif got the number from. In his reply he wrote that the number is **not mentioned anywhere**, not in the Tosefta, the Sifra or the Sifrei. Perhaps the Rif gathered them from

another author, he could not say. But **most of the 24 are mentioned, scattered across the Mishnah and Talmud, and the few that are not are derived from the ones that are.**

So the Rif simply *lists* the 24; the Rambam **gives reasons** for each one, explains it, and arranges them.

The Five Categories

The Rambam sorts the 24 into **five categories, descending in severity**: four items in the first category and five in each of the other four (4 + 5 + 5 + 5 + 5 = 24). Each of the first five halachot covers one category; the sixth halacha is the conclusion.

Category	Halacha	The Rambam's description	Meaning
1 (4 items)	4:1	**אין הקב״ה מספיק בידו לעשות תשובה**	Almost impossible: Hashem withholds the ability to repent
2 (5 items)	4:2	**נועלים דרכי התשובה**	The doors of teshuvah are *locked.* A locked door can still be broken down
3 (5 items)	4:3	**אי אפשר לו שישוב בתשובה גמורה**	You can do teshuvah, but not *complete* teshuvah
4 (5 items)	4:4	**אין חזקתו לשוב**	The presumption is you won't repent, though you can
5 (5 items)	4:5	**קשה לחזור מהן**	Hard to separate from, once you're used to them
Conclusion	4:6		**Nothing** finally prevents teshuvah

The key point before starting: "Despite everything we're going to learn, it's hard, it's impossible, the doors are locked, etc. Still, the option of teshuvah is always available… teshuvah always works in all circumstances, if done properly."

Part 2: Category 1 – "Hashem Does Not Give Him the Ability" (Halacha 1)

ארבעה מהן עון גדול, והעושה אחד מהן אין הקדוש ברוך הוא מספיק בידו לעשות תשובה לפי גודל חטאו

Four of them are a great sin; whoever does one of them, the Holy One, blessed be He, does not grant him the means to repent, **in proportion to the greatness of his sin**.

"In proportion to the greatness of his sin"

That last phrase means there are **levels within each category, and even within each sin.** The worse the version of the sin, the harder the teshuvah.

What does "Hashem does not grant him the ability" mean?

The Rabbi referred back to the class's study of the **Shemonah Perakim** (the Rambam's Eight Chapters, his introduction to Pirkei Avot) earlier in 2024. In Chapter 8 the Rambam deals with free will and asks how the Torah can say Hashem **hardened Pharaoh's heart**, or Sichon's, apparently removing their free will. His answer: sometimes a person has sinned so much that Hashem takes away the ability to repent, because He wants the person to bear the consequences. Teshuvah rectifies everything; for these sins, Hashem withholds it.

Normally, the Gemara tells us, **one who comes to purify himself is helped.** Here it is the reverse: Hashem not only does not assist, He actively makes repentance difficult. The opportunity still exists (Halacha 6), but it becomes "almost impossible for us to want or to be able to."

The four sins

המחטיא את הרבים: causing the public to sin, which includes **preventing the public from doing a mitzvah.** Clearly causing others to sin is worse than preventing them from a mitzvah: levels again.

המטה את חבירו מדרך טובה לרעה, כגון מסית ומדיח: leading another person from the good path to the bad. A *mesit* entices a few people to idolatry, a *madiach* a single person. This is the only case in the Torah where causing *someone else* to sin carries the death penalty.

הרואה בנו יוצא לתרבות רעה ואינו מוחה בידו: seeing one's child going astray and not objecting. Since the child is under your authority, had you objected he would have stopped, **so it is as if you caused him to sin.** The same applies wherever you have authority and the ability to rebuke.

האומר אחטא ואשוב: one who says "I will sin and then repent," or "I will sin and Yom Kippur will atone".

Why the first three? Your actions are still "out there"

The Gemara in Yoma explains: if someone who caused the public to sin could easily repent, he would earn his share in the World to Come **while those he led astray would not.** That would be unjust.

The **Meiri** (13th-century Provence, a student of a student of the Rambam) adds an analogy: it is like a thief who wants to repent but has not returned the stolen object. As long as the people you influenced are still sinning, **the effects of your actions are still out there.**

Question: why was Yeravam offered teshuvah?

The Gemara in Sanhedrin says Hashem appeared to **Yeravam ben Nevat** and offered him the chance to repent, though he was *the* classic *choteh u'machti et harabim*. He set up idols along the pilgrimage route and told people they need not go to Jerusalem; they could offer their sacrifices there.

Answer: the whole reason the door closes is the *ongoing influence*. A king has the greatest influence of all, so he alone had the power to **undo** what he had done and bring all those people back. Precisely because of that, Hashem gave him the opportunity. He did not take it.

Rule of thumb: someone who caused others to sin is normally prevented from teshuvah, **unless he still exerts great influence**, in which case he is more likely to be given the chance, because he can repair the damage.

Gechazi: preventing others from learning

The Rabbi told the story from Melachim (also the haftarah of Parashat Metzora):

- **Na'aman**, the Syrian commander, had *tzara'at*. The prophet **Elisha** healed him and refused payment (just as, in that week's parasha, **Avram** refuses the spoils from the king of Sedom).

- Elisha's student **Gechazi** ran after Na'aman and took the money; Na'aman gave him double.

- Elisha told him that since he took Na'aman's money, he would take Na'aman's illness too.

- After they fell out, the Gemara says Gechazi tried to **prevent students from going to Elisha's classes**: the classic case of preventing the public from a mitzvah, here the mitzvah of Torah study.

A parallel in Rav Saadiah Gaon

On Mondays the class learns *Emunot VeDeot*. In the **fifth essay** (to be learned early next year), Rav Saadiah writes that all sins can be forgiven except three, and the first is **one who leads the people astray** with wrong advice, intentions or rulings. Even if he repents himself, he cannot rectify what he has done.

Category 1, item 3: the duty to object, and the duty to keep quiet

- **Educating children.** The Gemara in Kiddushin gives two opinions on the key age for guiding one's child: 16 to 22, or 18 to 24. The Rabbi wondered whether that still holds: "I think once kids have reached the age of 16 nowadays, I think they're in their own domain."
- **Anyone who can object and does not is held responsible.** The Gemara tells of a sage whose wife did something wrong; because he could have objected and didn't, he was held culpable.
- **But there is also a mitzvah to stay silent.** Just as it is a mitzvah to say something that will be heard, **it is a mitzvah *not* to say something that won't be.** Rebuke needs great wisdom and sensitivity.

"Every one of us has a position of influence," at work, in the family, in the community, whether we are conscious of it or not. When our words *would* have been accepted and we stay silent, we are liable, and the effects of that silence continue long after we regret it.

"Rebuke your *amit*": first be a friend

The verse says **הוכח תוכיח את עמיתך**, "you shall surely rebuke your *amit*," your friend. The Rabbi, citing one of the Acharonim:

"Some people think: whenever I see another Jewish person doing something wrong, I have a duty to tell them off. **That's absolutely incorrect.** Before you can tell someone off, you have to be their friend."

Only within an existing relationship does rebuke make sense, and each person has to judge when to speak and when to keep quiet.

Item 4: when teshuvah itself is the cause of the sin

The Mishnah in Yoma: **האומר אחטא ואשוב, אחטא ואשוב, אין מספיקין בידו לעשות תשובה; אחטא ויום הכפורים מכפר, אין יום הכפורים מכפר.** Saying "we have Yom Kippur at the end of the year" is not how it works.

The Rambam had a difficulty with this Mishnah, because he holds that teshuvah is always possible. In his commentary he explains that Yom Kippur's atonement is not just the fast; it requires preparation and real teshuvah. Such a person will find that Hashem makes it hard for him to go through the proper process.

Why is this in Category 1? Because here **teshuvah itself is what causes the sin**: "I sin *because* I say teshuvah will atone." So Hashem withholds teshuvah, the very thing being abused.

Part 3: Category 2 – The Doors Are Locked (Halacha 2)

חמשה דברים הנועלים דרכי התשובה בפני עושיהן

Five things lock the paths of teshuvah before those who do them.

It is possible, "but you're going to have to break down the doors." The common thread: **each one cuts you off from the people and sources that would guide you back.**

הפורש מן הציבור: one who separates himself from the community. There are times when the whole community is aroused to teshuvah together; if you are not part of it, you never share that moment. (In

Chapter 3, before Yom Kippur, the class saw that "one who separates from the community" is also among those with no share in the World to Come, and discussed whether that means someone who keeps the mitzvot but takes no part in communal life, or someone who disassociates himself from being Jewish altogether.)

החולק על דברי חכמים: one who disparages the words of the Sages. If you do not listen to them, you will not know how to do teshuvah.

המלעיג על המצוות: one who scoffs at the mitzvot ("this mitzvah isn't for me, it's nonsensical"). Since increasing good deeds is one of the primary ways of doing teshuvah (Chapter 2), someone who sees no value in mitzvot has no way back.

המבזה רבותיו: one who disgraces his own teachers. They will no longer take an interest in him or teach him. The uncensored text of the Rambam gives two examples: **Gechazi**, whom Elisha pushed away, and **Jesus**, who in the Talmud's account accused his teacher of gazing at a woman, was excommunicated, lost the relationship with his teacher, "and the rest is history."

5. The Rif, whom the Rambam is quoting, adds **one who disrespects his parents** here as well.

השונא את התוכחות: one who hates rebuke. If you never accept feedback or criticism and "never find imperfection in yourself," you will never change.

The ideal communal guide

Here the Rambam digresses: Moshe constantly rebuked Israel; Yeshayahu said "the ox knows its owner" yet Israel does not know its God; Hashem told the prophets **קרא בגרון אל תחשוך**, "cry out with your throat, don't hold back." Therefore:

> **לפיכך צריך להעמיד בכל קהל וקהל מישראל חכם גדול וזקן וירא שמים מנעוריו ואהוב להם, שיהא מוכיח לרבים ומחזירן בתשובה**

Therefore every community in Israel must appoint a great sage, elderly, God-fearing **from his youth**, and **beloved to them**, who will rebuke the public and bring them back in teshuvah.

Qualification	Why
חכם גדול, a great sage	He must be very wise
זקן, elderly	Experience
ירא שמים, God-fearing	"Who are you to tell other people off when you don't do so yourself?"
מנעוריו, from his youth	The Gemara: if you only became good in old age, people will ask "where were you 20 years ago?"
אהוב להם, beloved to them	Perhaps the most crucial. "There's no point trying to tell people off when you don't have that love."

The lesson: "When you want to exert influence upon other people, the first thing we have to do is create a relationship of love."

Part 4: Category 3 – Teshuvah, but Not Complete Teshuvah (Halacha 3)

חמשה דברים העושה אותן אי אפשר לו שישוב בתשובה גמורה

These are **interpersonal sins where you no longer know whom you wronged**, so you cannot ask forgiveness or make restitution. The Rabbi stressed: these are **not** the worst sins. "Who's worse? Of course the person who steals." But the thief knows whom he stole from; these people do not.

המקלל את הרבים: cursing a whole group. Insult one person and you can apologise; insult an entire sect, and whom do you ask?

החולק עם גנב: sharing with a thief, buying from him, profiting from him. The thief himself is *not* on the list: he knows whom to repay. You, who encouraged him, do not. The Gemara's solution is to give the money to communal needs, so it diffuses through the community and, hopefully, reaches the person it was taken from.

המוצא אבידה ואינו מכריז עליה: finding a lost object and not announcing it. The Torah (Parashat Ki Tetzei) commands returning and announcing lost property. Years later, how will you find the owner?

האוכל שוד עניים, יתומים ואלמנות: taking the collateral (or property) of the poor, orphans and widows. It is forbidden from anyone, but an ordinary person has a fixed address; these people often do not, so you cannot find them to return it.

המקבל שוחד להטות דין: a judge who takes a bribe. The Beit Yosef explains: **"once you take a bribe, it perverts wisdom."** You can never again see the case objectively, so even years later you cannot know what the right ruling would have been. And you caused the briber to sin too. The Rabbi suggested that perhaps the way forward would be to ask someone else to judge the matter afresh, and act on that.

Part 5: Category 4 – You Can, but Probably Won't (Halacha 4)

חמשה דברים העושה אותן אין חזקתו לשוב עליהן, לפי שהם דברים קלים בעיני רוב בני אדם, ונמצא חוטא והוא מדמה שאין זה חטא

Five things: whoever does them is not presumed to repent, because they are light in most people's eyes, so he sins and imagines it is no sin.

"It's fascinating to see the examples." These are everyday things that feel trivial.

האוכל מסעודה שאינה מספקת לבעליה: eating from a meal that is not enough for its owner. The Gemara calls this **אבק גזל**, "the dust of theft." You knock on a poor person's door, they are embarrassed and say "come in and eat," and you can see there is barely enough. You *were* invited, but they did not really mean it.

2. **Today:** pushing people into something beyond their means that they agree to because they feel they have no choice.

המשתמש בעבוטו של עני: using a poor person's collateral. Holding collateral is fine, *using* it is forbidden. With an expensive watch you would know you were doing wrong; with "an old axe," you would never think so.

המסתכל בערוות: gazing at forbidden women. "Did I touch her? No, I just looked." But gazing is the root of further sin. The Rambam counts **ולא תתורו אחרי לבבכם ואחרי עיניכם**, "do not stray after your heart and your eyes," from the Shema as one of the 613 mitzvot. Ordinary interaction and looking at someone's face is fine; **gazing** is forbidden. "Eyes and the heart… that causes all sins."

המתכבד בקלון חבירו: gaining honour from a colleague's disgrace. "He's a great guy, very learned. I'm more learned." He is not present, you did not technically speak badly of him, but **elevating yourself by comparison is still a sin.** The Rabbi's example: a job interview.

החושד בכשרים: suspecting innocent people. Suspicion feels like "just a thought," but it is wrong in itself. And a person who thinks everyone is doing wrong ends up doing wrong himself: **"How many times do**

.people tell me, 'everyone does it'?" This is one reason for the mitzvah to **judge others favourably**

Part 6: Category 5 – Hard to Break the Habit (Halacha 5)

חמשה דברים העושה אותן קשה לחזור מהן, לפיכך צריך אדם להזהר מהן שמא ידבק בהן

Five things are hard to return from; therefore a person must beware of them lest he become attached to them.

Here **you know you are doing wrong**, unlike Category 4, but the habit is hard to break. "These are all bad character traits."

	Trait	The Rabbi's explanation
1	(*rechilut*) **רכילות**	In the Rambam's terminology: peddling information from person to person ("Did you hear how much he made? Did you hear what she did?"), not necessarily bad things
2	**לשון הרע**	Speaking derogatorily about people
3	**בעל חמה**	A person given to temper
4	**בעל מחשבה רעה**	Always thinking negatively; extreme pessimism
5	**המתחבר לרשע**	Close friendship with the wicked. "I'm in that gang, that *chevrah*." Shlomo HaMelech: **ורעה כסילים ירוע**, a friend of fools becomes foolish

The Rambam notes he has already explained in **Hilchot Deot** how to keep away from these traits.

Part 7: The Conclusion – Nothing Stands in the Way (Halacha 6)

כל אלו הדברים וכיוצא בהן אף על פי שמעכבין את התשובה אין מונעין אותה, אלא אם עשה אדם תשובה מהן, הרי זה בעל תשובה ויש לו חלק לעולם הבא

All these and similar things, although they hold back teshuvah, do not prevent it. If a person repents of them, he is a *ba'al teshuvah* and has a share in the World to Come.

Summary

Category	Severity	The items
1. Almost impossible	Hashem withholds the ability	Causing the public to sin (or preventing a mitzvah); leading an individual astray (*mesit/madiach*); not objecting to one's child; "I'll sin and repent" / "Yom Kippur will atone"
2. The doors are locked	Cut off from guidance	Separating from the community; disparaging the Sages; scoffing at mitzvot; disgracing one's teachers (and, per the Rif, parents); hating rebuke
3. Not complete teshuvah	Can't find whom you wronged	Cursing a group; sharing with a thief; not announcing a lost object; taking from the poor, orphans and widows; a judge taking a bribe
4. Presumed not to repent	Don't realise it's a sin	"Dust of theft" at a meagre meal; using a poor man's collateral; gazing; honour at another's expense; suspecting the innocent
5. Hard to leave	Habits	Rechilut; lashon hara; temper; negative thinking; bad company
Halacha 6		None of these finally prevents teshuvah

Themes of the evening:

1. The 24 come from the Rif; the Rambam supplies the reasons and the order.
2. The worst impediments are about **influence**: your actions keep working on others after you regret them.
3. Rebuke only works from **friendship and love**, and sometimes the mitzvah is to stay silent.
4. Many "small" sins are dangerous precisely because we don't notice them.
5. Teshuvah is always possible.

Coming Up

Next week: Chapter 5, on **free will**, "a very deep and philosophical chapter," since an essential element of teshuvah is that we are free to choose. The class will look at the Rambam's approach and others', with the focus on the question: **do we really have free will?**

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